

An Act

ENROLLED SENATE
BILL NO. 1572

By: Rosino, Gillespie, and
Prieto of the Senate

and

Stinson, Pae, and Archer of
the House

An Act relating to the State Commissioner of Health; directing the Commissioner to conduct certain feasibility study in collaboration with the Department of Mental Health and Substance Abuse Services; describing feasibility study; directing the study to evaluate certain topics; requiring compilation and submission of certain final report; amending 51 O.S. 2021, Section 6, as amended by Section 1, Chapter 303, O.S.L. 2025 (51 O.S. Supp. 2025, Section 6), which relates to officers; creating certain exemption; providing for codification; and declaring an emergency.

SUBJECT: State Commissioner of Health

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-103b of Title 63, unless there is created a duplication in numbering, reads as follows:

A. For the purpose of ensuring continuity of services, the State Commissioner of Health shall, in collaboration with the Department of Mental Health and Substance Abuse Services, conduct a feasibility study to gather and analyze information and

considerations related to a potential consolidation of the State Department of Health and the Department of Mental Health and Substance Abuse Services. The feasibility study shall examine ways the state can improve efficiency, simplify operations, reduce administrative costs, demonstrate outcomes, and provide quality services for the residents of this state.

B. The feasibility study shall compare the State Department of Health and the Department of Mental Health and Substance Abuse Services, including a comparison of the areas listed in this subsection, and shall study health agency consolidation initiatives of other states. The feasibility study shall evaluate the following topics:

1. Administrative functions of each agency including, but not limited to, inventory, organizational structure and capabilities, management, staffing plans, and operations;

2. Finances of each agency, including:

- a. any estimated projected savings to the state through a consolidation initiative,
- b. reliance on federal, state, and other funding sources,
- c. cost drivers, and
- d. return on investment of programs and services; and

3. Programs offered by each agency, services provided, populations served, and costs and outcomes related to programs and services. The study shall evaluate:

- a. programs, functions, and services that are duplicative, complementary, or unique to each agency and identify opportunities to align programs and services, and
- b. access to and quality of programs and services and identify any gaps in services.

C. The findings of the feasibility study and any recommendations of the Commissioner shall be compiled into a final report, which shall be electronically submitted to the Governor, the President Pro Tempore of the Senate, and the Speaker of the House of Representatives not later than March 1, 2027.

SECTION 2. AMENDATORY 51 O.S. 2021, Section 6, as amended by Section 1, Chapter 303, O.S.L. 2025 (51 O.S. Supp. 2025, Section 6), is amended to read as follows:

Section 6. A. Except as may be otherwise provided, no person holding an office under the laws of the state and no deputy of any officer so holding any office shall, during the person's term of office, hold any other office or be the deputy of any officer holding any office, under the laws of the state. The provisions of this section shall not apply to:

1. Notaries public;
2. Members of the State Textbook Committee;
3. County free fair board members;

4. Municipal and county law enforcement officers serving in positions as law enforcement officers of both such governmental entities upon such terms and conditions as are mutually approved by resolutions adopted by the board of county commissioners and governing body of the municipality employing such officers;

5. Any person holding a county or municipal office or position, or membership on any public trust authority, who is a member of a board or commission that relates to federal, state, county or municipal government and is created by the United States government, this state or a political subdivision of this state, except where the duties of the offices or positions conflict;

6. Any elected municipal officers and school board members who are appointed to a state board, commission, or similar entity if there is no compensation for such services other than reimbursement for necessary travel expenses pursuant to the provisions of the State Travel Reimbursement Act;

7. Any trustee of a public trust, who is appointed as a trustee of a different public trust or any trustee of the Tulsa County Public Facilities Authority who may also be employed by the Department of Transportation;

8. Law enforcement officers employed by municipal or county law enforcement departments or agencies, other than those law enforcement officers elected or appointed as sheriff, chief of police or some similar position in which they are the head of a county or municipal law enforcement agency, who are elected to local boards of education; provided, the provisions of this paragraph shall not prohibit any law enforcement officer employed by a municipality having a population of ten thousand (10,000) or fewer people from serving as a member of a local board of education;

9. Any member of the Oklahoma Highway Patrol Division of the Department of Public Safety who is elected to a local board of education;

10. Any employee of the Oklahoma State Bureau of Investigation who is elected to a local board of education;

11. Any District Supervisor, Assistant District Supervisor, Team Supervisor, Parole Officer 1 or Parole Officer 2 of the Department of Corrections who is elected or appointed to a city council;

12. Any trustee or director of a rural electric cooperative, or port authority who is appointed or elected to a state, county or municipal board, commission or similar entity;

13. County employees who are elected as members of town or city councils;

14. Municipal, county, state or tribal law enforcement or peace officers operating under cross-deputization agreements with an Indian tribe or branch of the federal government;

15. Municipal or county law enforcement or peace officers serving in positions as campus police officers or campus public safety officers pursuant to the provisions of the Oklahoma Campus Security Act, upon such terms and conditions as are mutually

approved by resolution adopted by the governing body of the municipality or county and the governing board of the institution of higher education;

16. State law enforcement or peace officers serving in positions as campus police officers or campus public safety officers pursuant to the provisions of the Oklahoma Campus Security Act, upon such terms and conditions as are mutually approved by written agreement between the Commissioner of Public Safety and the governing board of the institution of higher education;

17. Municipal, county and state law enforcement officers serving in positions as part-time or seasonal rangers or peace officers under the Oklahoma Tourism and Recreation Department or the Grand River Dam Authority;

18. Members of the University Hospitals Authority;

19. Any person holding a state or county office or position who is a reserve force deputy sheriff, or a reserve special agent with the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control or a reserve municipal police officer;

20. Any person holding a state office or position who serves as a special assistant district attorney without compensation;

21. Any elected or appointed member of a local school board who is a member of a municipal planning commission;

22. Any elected or appointed member of a local school board who is a member or an officer of a volunteer fire department;

23. Directors or officers of a rural water district and chiefs of municipal fire departments or rural fire districts who are appointed or elected to an unsalaried office in a state, county, municipal, school, or technology center school board, commission, or similar entity, except where the duties of the office would create a conflict of interest;

24. Any person who is a dispatcher or confinement officer at a municipal or county jail who is a noncompensated reserve municipal police officer or a reserve deputy sheriff;

25. Any person who is an assistant district attorney serving as a municipal judge or prosecutor;

26. Any park ranger under the Oklahoma Tourism and Recreation Department or any game warden or reserve game warden employed by the Department of Wildlife Conservation who is elected or appointed to a local board of education or to a municipal governing body, board, commission or similar entity;

27. Members of the Oklahoma State University Medical Authority, the Oklahoma State University Medical Trust or the State Board of Osteopathic Examiners;

28. Any member of the state Legislature or any state officer who serves on the board of trustees of the Oklahoma School for the Visual and Performing Arts;

29. Members of the Council on Judicial Complaints;

30. A campus police officer who is elected as a member of the governing board of a town or municipality that is outside of the town or municipality where the person serves as a campus police officer; ~~and~~

31. Any person who is a state employee but not a member of the state military forces, including district attorneys, assistant district attorneys, district court judges, associate district court judges and special judges, when detailed as a military trial judge pursuant to Section 826 of Title 44 of the Oklahoma Statutes or when serving as an appellate military judge pursuant to Section 866 of Title 44 of the Oklahoma Statutes when the Military Court of Appeals is convened. The rules of procedure prescribed by the State Judge Advocate pursuant to subsection L of Section 866 of Title 44 of the Oklahoma Statutes shall define what constitutes the Military Court of Appeals being "convened" for purposes of this paragraph; and

32. The State Commissioner of Health, if he or she is appointed as Commissioner of Mental Health and Substance Abuse Services, including on an acting or interim basis, for the duration of the feasibility study described in Section 1 of this act.

The provisions of this section shall not prohibit any person holding an office under the laws of the state or any deputy of any officer so holding any office from serving upon the board of Oklahoma Futures or upon the board of directors of the Oklahoma Center for the Advancement of Science and Technology. The provisions of this section shall not prohibit a member of the board of directors of the Oklahoma Center for the Advancement of Science and Technology from serving upon the board of Oklahoma Futures.

B. Except as provided in subsection C of this section, salaries, emoluments or benefits that would otherwise be paid by the agency or political subdivision to a loaned employee or officer shall instead be paid to the regular employer of such employee. The loaned employee shall in turn be paid regular salary and benefits the same as if continuing regular employment with the permanent employer.

C. Any person excepted pursuant to paragraph 31 of subsection A of this section, when retained as a military trial judge or when serving as a military appellate judge when the Military Court of Appeals is convened, shall be entitled to military judicial leave in accordance with Section 209 of Title 44 of the Oklahoma Statutes.

SECTION 3. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 14th day of May, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____